

26SMCV02777 26SMCV02777

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Case Number: 26SMCV02777 Hearing Date: September 24, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

LIDA DANIELYAN,

Plaintiff,

v.

CEDARS-SINAI MEDICAL CENTER, et al.,

Defendants.

Case No.: 26SMCV02777

Hearing Date: September 24, 2026

[TENTATIVE] order RE:

DEFENDANT'S DEMURRER TO

COMPLAINT

BACKGROUND

This is a medical malpractice case. On October 27, 2025, Plaintiff was admitted to Defendant Cedars-Sinai Medical Center for a hip replacement surgery. Plaintiff claims she was discharged despite her reporting to Cedars staff that she was dizzy and weak and while she was still under the effects of anesthesia. Plaintiff claims there were no clinical reassessments done prior to proceeding with the discharge.

A Cedars-Sinai employee transported Plaintiff by wheelchair to the parking structure. As the employee attempted to transfer Plaintiff from the wheelchair into the waiting vehicle, he released his hold on Plaintiff to adjust something in the car. He did so without warning Plaintiff and without taking any steps to ensure that Plaintiff was secured or otherwise capable of supporting herself.

At that moment, Plaintiff, who remained under the heavy effects of anesthesia and had already reported feeling dizzy and weak, fell to the ground, landing on her back on the surface of the parking lot. As a result of the fall, Plaintiff dislocated and fractured the very hip that had been surgically replaced only hours earlier.

Cedars-Sinai personnel responded to the scene and, after being unable to assist Plaintiff to a seated position, used a Hoyer lift to transfer her onto a gurney. Plaintiff was then taken to the emergency room, where radiographic imaging confirmed the hip fracture.

The very next day, Plaintiff underwent a second surgical procedure to repair the injuries caused by the fall. Following the second surgery, Plaintiff remained hospitalized for approximately five additional days.

This action ensued. Plaintiff sues Cedars for (1) professional negligence, (2) general negligence, (3) negligent hiring/training/supervision/retention, and (4) negligent infliction of emotional distress.

This hearing is on Cedars' demurrer to the Complaint, specifically the second cause of action for general negligence. Cedars argues that the negligence claim is one for professional negligence because it involves the rendering of medical services, and as such, it is duplicative of the first cause of action. Cedars also represents that Plaintiff has stipulated to the dismissal of the fourth cause of action for negligent infliction of emotional distress.

MEET AND CONFER

Code Civ. Proc. § 430.41 requires that before the filing of a demurrer the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).) Defendant submits the Declaration of Saa K. Mores who attests that the parties met and conferred by email and telephone. The parties were able to resolve their disputes as to the negligent infliction and emotional distress claim but were not able to agree as to the general negligence claim. This satisfies Defendant's meet and confer obligations.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents).) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"); *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 ("A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."). The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Uncertainty

Cedars argues that the Complaint is "fatally uncertain as pled" (Demurrer at 2) but it never explains how that is so. Demurrers for uncertainty under Code of Civil Procedure section 430.10, subdivision (e) are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. (*Id.*) Here, the FAC is not so bad that Cedars cannot properly respond to it. Cedars' demurrer makes clear that Cedars knows the underlying facts and theories of Plaintiff's claims. The allegations are simple -- Plaintiff fell while being transported out of the hospital, and Plaintiff is suing for professional and general negligence.

General Negligence

Cedars argues that Plaintiff's general negligence claim is duplicative of the professional negligence claim because the transport of Plaintiff into the van/car constitutes the provision of medical services, and therefore, the general negligence claim is merely a restatement of the professional negligence claim. Cedars next argues that the transport of a patient to a car after the patient has had surgery constitutes professional negligence, not general negligence. The Court agrees.

The determination of whether a claim is one for professional negligence or ordinary negligence is significant because a professional negligence claim is harder to bring than an ordinary negligence claim. A professional negligence claim has a shorter statute of limitations. It requires a 90-day notice period where a plaintiff must inform the provider of his/her intent to sue. And a plaintiff must obtain a certificate of merit from a medical expert confirming the claim's validity. It also imposes a \$250,000 cap on non-economic damages, and a plaintiff must obtain leave of court before seeking punitive damages.

In a medical negligence claim, "professional negligence" has four elements: (1) "a negligent act or omission to act by a health care provider in the rendering of professional services," (2) "which act or omission is the proximate cause of a personal injury or wrongful death," (3) "provided that such services are within the scope of services for which the provider is licensed," and (4) "which are not within any restriction imposed by the licensing agency or licensed hospital." (*Flores v. Presbyterian Intercommunity Hosp.* (2016) 63 Cal.4th 75, 84, quoting Code Civ. Proc. § 340.5(2).)

Here, there is no dispute that Cedars is a healthcare provider, and that the Cedars is licensed to care for patients such as Plaintiff. There is also no dispute that the transporter was acting in the course and scope of his employment with Cedars. The issue is whether the act of transporting a patient into a car at a hospital parking garage constitutes the provision of professional services.

To be sure, pushing a wheelchair does not require special skill or medical knowledge. But "professional services" does not apply only to those specific tasks that require advanced medical skills and training. A medical professional or other hospital staff member may commit a negligent act in rendering medical care, thereby causing a patient's injury, even where no

particular medical skills were required to complete the task at hand. (Flores v. Presbyterian Intercommunity Hosp. (2016) 63 Cal.4th 75, 89.)

For example, a hospital's negligent failure to prevent a patient from becoming separated from an oxygen ventilator occurs in the "rendering of professional services" (§ 340.5, subd. (2)), "regardless of whether separation was caused by the ill-considered decision of a physician or the accidental bump of a janitor's broom" (Taylor v. U.S. (9th Cir. 1987) 821 F.2d 1428, 1432).

If a doctor has determined that a hospitalized patient's medical needs require a special diet, and the patient is injured because a hospital employee negligently gives the patient the wrong food, the hospital has inflicted injury in the rendering of professional services to the patient. (Flores, 63 Cal.4th at 89.)

If hospital staff places a violently coughing patient on a gurney for X-rays, and the patient falls to the ground after the staff negligently leaves her unsecured while the film is being developed, the hospital has caused injury in the rendering of professional services to the patient, even though fastening straps requires no special skill. (See Bellamy, 50 Cal.App.4th 797.)

And if a patient fell because a hospital staff employee neglected to put up the bed rails (which is a task anyone can perform), the act is still a professional service. (Flores, 63 Cal.4th at 89; Murillo v. Good Samaritan Hospital (1979) 99 Cal. App. 3d 50, 52-54.) The decision whether or not to raise the bedrails on the plaintiff's bed came within the defendant hospital's "duty 'to use reasonable care and diligence in safeguarding a patient committed to its charge.'" (Id. at 55.) "Whether it was negligent to leave the bedrails down during the night while plaintiff was asleep is a question involving hospital's duties to recognize the condition of patients under its care and to take appropriate measures for their safety." (Id. at 56.)

So it is here. The transport of Plaintiff was part of her medical care, to ensure she safely got into her car after the surgical procedure. Accordingly, Plaintiff's general negligence claim is truly a professional negligence claim.

Plaintiff's reliance on Gutierrez v. Tostado (2025) 18 Cal.5th 222 is misplaced. There, the plaintiff in Gutierrez was not a patient. The plaintiff was driving his car when he was rear-ended by an ambulance transporting a patient. The defendants in Gutierrez argued that because the injury occurred in the rendering of professional services to a patient, MICRA applied. The California Supreme Court disagreed, holding that MICRA does not apply to a plaintiff who is part of the public at large and is unrelated to the patient to whom the professional services are being rendered. The Gutierrez court distinguished the case before it to a hypothetical where a janitor's broom accidentally falls and disconnects a patient's ventilator. The Gutierrez court noted that the janitor example would be a case of professional negligence. (Id. at 232-233.)

Cedars next argues that because Plaintiff's general negligence claim is really a professional negligence claim, the claims are duplicative, and the general negligence claim should be dismissed.

There is a split authority on whether a demurrer can be sustained on the ground that a cause of action is duplicative. Some courts have recognized it as a proper basis for sustaining a demurrer. (See Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290 ["Regardless, as Parth argues, the cause of action for breach of governing documents appears to be duplicative of the cause of action for breach of fiduciary duty. This court has recognized this as a basis for sustaining a demurrer."]); see also Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135 ["But stating them in two causes of action, as real party has done, is merely duplicative pleading which adds nothing to the complaint by way of fact or theory. For that reason, the demurrer should have been sustained as to this cause of action"].)

Other courts have found that a cause of action is not subject to demurrer merely for being duplicative of another cause of action. (See Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 889-90 ["BTC went on to argue that this was a distinction without legal significance, and that the court should sustain the demurrer because the third cause of action 'mirrors [the] first cause of action for concealment and is duplicative.' This is not a ground on which a

demurrer may be sustained."].)

The Blickman court first noted that the language of C.C.P. §430.10 does not authorize a demurrer on grounds of redundancy. (Blickman, 162 Cal.App.4th at 890.) The Blickman court observed that the practice of sustaining a demurrer to a duplicative cause of action was actually grounded in language no longer present in the statutory scheme. (Id.) Although the statute authorizing a motion to strike, Code Civ. Proc. §436(a), did previously authorize courts to strike out "irrelevant and redundant" matter, that language has since been removed. (Id.) The court observed that the modern statute contained no analogous language authorizing the striking of redundant material. (Id.)

The Court finds the reasoning in Blickman persuasive. Section 430.30 identifies eight bases for a demurrer, and redundancy is not one of them. (See Auto Equity Sales, Inc. v. Superior Court of Santa Clara County (1962) 57 Cal.2d 450, 456, (Where appellate decisions are in conflict, the court exercising inferior jurisdiction can and must make a choice between the conflicting decisions))

CONCLUSION AND ORDER

Based on the foregoing, the Court OVERRULES the demurrer to the general negligence claim and SUSTAINS the demurrer to the negligent infliction of emotional distress claim.

IT IS SO ORDERED.

DATED: September 24, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court